

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUMM042233: NICK GRANADO vs GERCKENS CHIROPRACTIC AND
WELLNESS CENTER, INC., et al.

07/14/2026 in Department 21

Motion for Leave to File Second Amended Complaint

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff Nick Granado’s Motion for Order Granting Leave to File 2nd Amended Complaint (*Opposed*)

Tentative Ruling:

Plaintiff Nick Granado’s renewed motion for leave to file an amended complaint is **GRANTED**. Plaintiff shall file and serve the proposed pleading, properly captioned as the ***First Amended Complaint***, within 10 days. The filed pleading should not include the evidentiary exhibits attached to the motion unless otherwise required by law.

Defendants’ opposition was filed on July 6, 2026, after the June 30, 2026 opposition deadline for the July 14, 2026 hearing. The Court exercises its discretion to consider the late-filed opposition because Plaintiff has not shown prejudice resulting from the delay.

CCP §§ 473(a)(1) and 576 authorize the Court, in furtherance of justice, to permit amendment of a pleading. Leave to amend is liberally granted, particularly where the proposed amendment concerns the same general transaction and the opposing party has not demonstrated substantial prejudice. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Plaintiff’s renewed filing does not strictly comply with every requirement of California Rules of Court, rule 3.1324. Although Plaintiff attached a complete proposed amended pleading, he did not identify every proposed addition or deletion by page, paragraph, and line number as required by rule 3.1324(a)(2)-(3). His declaration also does not separately organize its discussion under each element of rule 3.1324(b).

**2025CUMM042233: NICK GRANADO vs GERCKENS CHIROPRACTIC AND
WELLNESS CENTER, INC., et al.**

The renewed papers nevertheless substantially cure the principal defects identified in the Court's May 5, 2026 ruling. Plaintiff submitted a complete proposed amended pleading and a sworn declaration explaining the amendment's purpose, when he reviewed and compared the relevant records, and why amendment was not sought earlier. The proposed amendments are reasonably identifiable as allegations concerning allegedly inconsistent medical records and claimed kidney complications arising from antibiotic treatment following the burn injury.

Plaintiff's delay is not insignificant because he acknowledges that at least some of the relevant records were previously in his possession. The declaration, however, explains that former counsel transmitted the files in early 2026, Plaintiff began reviewing them after becoming self-represented, and he later located and compared two allegedly different versions of the May 24, 2024 note. In the absence of demonstrated prejudice, the delay does not justify denial.

Defendants have not identified an impending trial, loss of evidence, necessary continuance, or other concrete prejudice. The possibility of additional discovery or motion practice does not, by itself, outweigh California's liberal policy favoring amendment. Any challenge to the legal sufficiency, factual support, or causation allegations in the First Amended Complaint may be raised by demurrer, motion to strike, discovery, or other appropriate procedure.

Unlike the prior proposed pleading, the present proposed *First Amended Complaint* does not seek punitive damages. It merely reserves the possibility of seeking such relief later. CCP § 425.13 therefore does not bar the amendment. Any future request to add punitive damages against the healthcare-provider defendants must comply with CCP § 425.13.

Moving party to give notice within two (2) court days.